

(36)

Tentative Ruling

Re: **Jackson v. Mananian, et al.**
Superior Court Case No. 25CECG02600

Hearing Date: August 12, 2026 (Dept. 501)

Motion: by defendant Allstate Northbrook Indemnity Company
Demurring to the First Amended Complaint

Tentative Ruling:

To sustain, with leave to amend, the demurrer to the entirety of the operative complaint, the First Amended Complaint, for uncertainty and failure to state facts sufficient to constitute a cause of action. . (Code Civ. Proc., § 430.10, subds. (e), (f).)

Explanation:

Defendant Allstate Northbrook Indemnity Company ("Allstate") demurs to the entirety of the First Amended Complaint ("FAC") on the ground that the complaint fails to state a cause of action, and is uncertain.

While plaintiff may and does utilize the Judicial Council form complaint, the usage of the form does not change the statutory requirement that the complaint contain “facts constituting the cause of action.” (Code Civ. Proc., § 425.10, subd. (a)(1).)

Indeed, the complaint is uncertain and fails to allege facts sufficient to state a cause of action, as it is completely devoid of any facts to apprise defendant of the issues it is being asked to defend against. Since the FAC is devoid of any allegations against Allstate, it is unknown what injury plaintiff has suffered, when the injury occurred, and how Allstate has caused such injury.

The absence of fact in the FAC renders it impossible for the court to determine whether there is a reasonable possibility that the defects may be cured by amendment. An opposition is not filed to give light to this issue. Nonetheless, since the possibility that plaintiff can plead sufficient facts to state a cause of action against Allstate is not foreclosed upon by the lack of allegations or any compelling argument provided by the moving papers, the court intends to grant leave to amend.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/11/26
(Judge's initials) (Date)